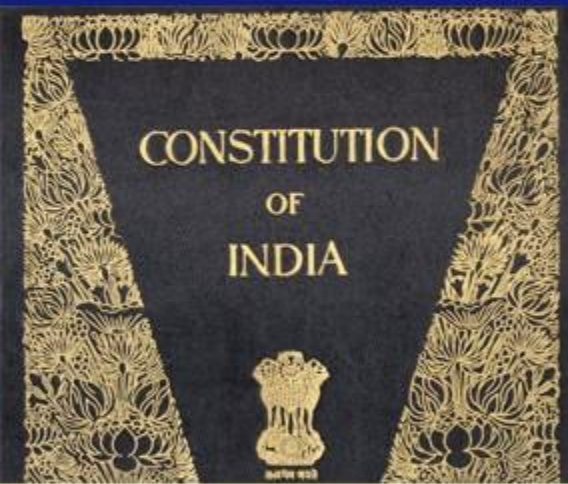


INDIAN POLITY



MODULE - 27

CITIZENSHIP

- LOSS OF CITIZENSHIP

ACQUISITION OF CITIZENSHIP (AFTER JANUARY 26, 1950)

The Citizenship Act, 1955 provides for acquisition and loss of citizenship after the commencement of the Constitution. The various modes of acquisition of citizenship prescribed by the Citizenship Act, 1955, are as follows:

- 1 CITIZENSHIP BY BIRTH
- 2 CITIZENSHIP BY DESCENT
- 3 CITIZENSHIP BY REGISTRATION
- 4 CITIZENSHIP BY NATURALISATION
- 5 CITIZENSHIP BY INCORPORATION
OF TERRITORY
- 6 SPECIAL PROVISIONS AS TO
CITIZENSHIP OF PERSONS
COVERED BY THE ASSAM ACCORD

LOSS OF CITIZENSHIP

The Citizenship Act, 1955 prescribes three ways of losing citizenship whether acquired under the Act or prior to it under the Constitution, viz,

1. By renunciation
2. By termination and
3. By deprivation:

INDIAN POLITY

LOSS OF CITIZENSHIP

1

BY RENUNCIATION



सत्यमेव जयते
Government of India

1

Any citizen of India of full age and capacity can make a **declaration renouncing his Indian citizenship**.

2

Upon the registration of that declaration, that person ceases to be a citizen of India.

3

However, if such a declaration is **made during a war in which India is engaged**, it shall be **withheld by the Central Government**

4

Further, when a person renounces his Indian citizenship, **every minor child of that person also loses Indian citizenship**. However, when such a child attains the age of eighteen, he may resume Indian citizenship

INDIAN POLITY

LOSS OF CITIZENSHIP

2

BY TERMINATION



1 When an Indian citizen voluntarily (consciously, knowingly and without duress, undue influence or compulsion) acquires the citizenship of another country, his Indian citizenship automatically terminates.

2 This provision, however, does not apply during a war in which India is engaged.

LOSS OF CITIZENSHIP

3

BY DEPRIVATION



Disloyalty



It is a compulsory termination of Indian citizenship by the Central Government, if:

- a) The Citizen has obtained the citizenship by fraud.
- b) The citizen has shown disloyalty to the Constitution of India.
- c) The Citizen has lawfully traded or communicated with the enemy during a war.
- d) The Citizen has, within five years after registration or naturalization, been imprisoned in any country for two years and
- e) The citizen has been ordinarily resident out of India for seven years continuously.

SINGLE CITIZENSHIP



- 1 Though the Indian Constitution is federal and envisages a dual polity (Centre and States), it provides for only a single citizenship, that is the Indian citizenship.
- 2 The citizens in India owe allegiance only to the union.
- 3 There is no separate State citizenship. The other federal State like USA and Switzerland, on the other hand, adopted the system of double citizenship

SINGLE CITIZENSHIP



- 4** In USA, each person is not only a citizen of USA but also of the particular State to which he belongs.
- 5** Thus, he owes allegiance to both and enjoys dual sets of rights—one set conferred by the national Government and another by the state Government.
- 6** This system creates the problem of discrimination, that is, a state may discriminate in favour of its citizens in matters like right to practice professions and so on.

SINGLE CITIZENSHIP



- 7** This problem is avoided in the system of single citizenship prevalent in India.
- 8** In India, all citizens irrespective of the State in which they are born or reside enjoy the same political and civil rights of citizenship all over the country and no discrimination is made between them.
- 9** However, this general rule of absence of discrimination is subject to some exceptions.

INDIAN POLITY

SINGLE CITIZENSHIP

BY ARTICLE 16

EXCEPTION 1



- 1 The Parliament (under Article 16) can prescribe residence within a state or union territory as a condition for certain employments or appointments in that State or union territory, local authority or local authority within that State or Union Territory.
- 2 Accordingly, the Parliament enacted the Public employment (Requirement as to Residence) Act, 1957 and thereby authorized the Government of India to prescribe residential qualification only for appointment to non-Gazetted posts in Andhra Pradesh, Himachal Pradesh, Manipur and Tripura.



1 The Constitution (under Article 15) prohibits discrimination against any citizen on grounds of religion, race, caste, sex or place of birth and not on the ground of residence.

2 This means that the State can provide special benefits or give preference to its residents in matters that do not come within the purview of the rights given by the Constitution to the Indian citizens. For example, a State may offer concession in fees for education to its residents.

EXCEPTION 3



- 1 The freedom of movement and residence (under Article 19) is subjected to the protection of interests of any schedule tribe.
- 2 In other words, the rights to outsiders to enter, reside and settle in tribal areas is restricted.
- 3 Of course, this is done to protect the distinctive culture, language, customs and manners of schedule tribes and to safeguard their traditional vocation and property against exploitation.

EXCEPTION 4



1

In the case of Jammu and Kashmir, the State legislature is empowered to **define the persons who are permanent residents of the State** and confer any special rights and privileges in matters of employment under the State Government, acquisition of immovable property in the State, settlement in the State and scholarships and such other forms of aid provided by the State Government.

CONCLUSION



- 1** The Constitution of India, like that of Canada, has introduced the system of single citizenship and provided uniform rights for the people of India to promote the feeling of fraternity and unity among them and to build an integrated Indian nation.
- 2** Despite this, India has been witnessing the communal riots, class conflicts, caste wars, linguistic clashes and ethnic disputes.
- 3** Thus, the cherished goal of the founding fathers and the Constitution-makers to build an united and integrated Indian nation has not been fully realized.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9